

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

**2025PRTR039181: IN RE THE LEONE M RIECK REVOCABLE TRUST AGREEMENT
DTD FEBRUARY 24, 2017, AS AMENDED ON SEPTEMBER 28, 2018
06/25/2026 in Department J6
Motion to Compel Further Responses to Form Interrogatories Set 1, Special
Interrogatories Set 1, etc**

The Court will grant the motion to compel further responses as follows:

1. Re form interrogatories (set two): Grant as to Nos. 2.5, 2.6, 2.7, 4.1, 4.2, 15.1, 16.1, 16.3, 16.6, and 17.7; deny as to Nos. 2.2, 2.3, 2.4, and 16.2.
2. Re special interrogatories (set two): Grant as to Nos. 2, 3, 5, 6, 8, 9, 10, 11, 12, and 13; deny as to Nos. 4 and 7.
3. Re request for production of documents (set two): Grant as to all numbers.

The Court will impose \$8,110 in monetary sanctions against Respondent John Swanson and his counsel, jointly and severally.

The Court notes that the untimely opposition to the motion filed on 4/28/26 by Attorneys Nadeen Farra and Madison Spach, Jr. contains citations to cases that do not exist. For example, the Opposition says on page 5: "Discovery must be relevant to the subject matter involved in the pending action and is not a license for "fishing expeditions." (*Donovan v. Superior Court* (1983) 140 Cal.App.3d 729, 733.)" On Westlaw, the citation 140 Cal.App.3d 729 brings up *People v. Justin* (1983) 140 Cal.App.3d 729 involving a criminal case. Page 733 of *People v. Justin* does not include any passage supporting the assertion "[d]iscovery must be relevant to the subject matter involved in the pending action and is not a license for "fishing expeditions."

The Opposition also contains quotations or law attributed to cases that do not appear to contain the quotations or law. The Opposition states on page 6: "Discovery statutes are intended to encourage informal resolution of disputes and to avoid unnecessary motion practice[.]" " citing *Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439. Page 1439 of *Townsend* does not contain this quote. Nor does it appear that such a quote is contained anywhere in that decision.

The Opposition also says on page 7: "The discovery process requires serious, good faith efforts to resolve disputes informally before resorting to the courts."

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Obregon v. Superior Court (1998) 67 Cal.App.4th 424, 431.” While *Obregon* is a real case, the quoted passage does not appear on page 431.

While the case *Estate of Cairns* (2010) 188 Cal.App.4th 937 does exist, the opinion does not appear to state any law in support of the principle it is cited for, namely that “[d]iscovery in probate proceedings is governed by the Civil Discovery Act but remains subject to relevance and proportionality limitations.” (Opp., p. 4.)

Ms. Spach, Jr., and Nadeen Farra are to serve and file declarations explaining the foregoing citation and quotes.